

TENTATIVE RULING

Antonio Soto, et al.
v.
Laura Soto, et al.
(And Related Cross-Complaint)

24CV002733

Defendants/Cross-Complainants' Motion to Compel and Deem Requests Admitted

Hearing Date: July 31, 2026

On April 7, 2026, Defendants and Cross-Complainants Saul Soto and Laura Soto (collectively, “Defendants”) served Form Interrogatories and Requests for Admission (collectively, “Discovery”) on each of the plaintiffs and cross-defendants—Antonio Soto, Concha Soto, Susanna Soto, and Monica Soto (collectively, “Plaintiffs”).¹ To date, no Plaintiff has responded to Defendants’ Discovery or opposed this motion. Accordingly, the unopposed motion is **GRANTED**, but Defendants’ request for sanctions is **DENIED**.

Factual and Procedural Summary.

On April 15, 2025, Plaintiffs filed their Second Amended Complaint (“SAC”) against Defendants. In that complaint, Plaintiffs allege that on October 5, 1992, Antonio and Concha purchased 726 San Juan Grade Road in Salinas, California (“Property”). [SAC at ¶ 8.] In 2013, they sold the Property to Yolanda and Juan De La Torre, and Plaintiffs became their tenants. [*Id.* at ¶¶ 9-10.] In May 2023, Defendants purchased the Property. [*Id.* at ¶ 19.] Plaintiffs assert nine causes of action against Defendants based on Defendants’ wrongful termination of and other conduct related to Plaintiffs’ tenancy in the Property. [*Id.*, *passim*.]

On April 24, 2025, Defendants filed their Answer to the SAC and Cross-Complaint against Antonio and Concha. In their Cross-Complaint, Defendants allege that Antonio and Concha breached the parties’ rental agreement by failing to pay rent and by intentionally entering the Property after surrendering possession without Defendants’ permission.

Nearly a year after filing their Cross-Complaint, Defendants served their first set of Discovery on each Plaintiff. [Defendants’ Decl. at ¶¶ 2-3 and Exhs. A-1 through A-4.] The responses were due on May 12, 2026. [*Id.* at ¶ 4.] No Plaintiff served any responses or objections to the Discovery. [*Id.* at ¶ 5.] Nor did any Plaintiff request an extension to serve their responses. [*Ibid.*]

On July 16, 2026, Susanna dismissed her claims against Defendants without prejudice. Therefore, the current pleadings in this case are the SAC filed by Antonio, Concha, and Monica, along with Defendants’ Cross-Complaint.

¹ Because they share the same last name, the Court will refer to each party by their first name.

Form Interrogatories.

A. Legal Standard.

“Unless otherwise limited by order of the court ... any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved ... if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” [Code Civ. Proc. § 2017.010.]

A party serving interrogatories may file a motion for an order compelling further responses if that party believes an answer is, among other things, evasive or incomplete, or an objection lacks merit or is too broad. [Code Civ. Proc. § 2030.300, subd. (a).] If a timely motion to compel is filed, the responding party has the burden to justify any objection or failure to answer the interrogatories fully. [*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221; *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.]

In assessing the motion, a court should generally consider the following factors: (1) the relationship of the information sought to the issues framed in the pleadings; (2) the likelihood that disclosure will be of practical benefit to the party seeking discovery; and (3) the burden or expense likely to be encountered by the responding party in furnishing the information sought. [*Columbia Broadcast System, Inc. v. Superior Court* (1968) 263 Cal.App.2d 12, 19.]

The Court “shall” require the party receiving discovery to pay the propounding party’s reasonable expenses, such as attorney fees, for enforcing discovery unless it finds that the sanctioned party acted with “substantial justification” or that other circumstances make the sanction unjust. [Code Civ. Proc. § 2030.300, subd. (d).] The moving papers must include a request for sanctions and (1) list all persons, parties, and attorneys against whom sanctions are being sought; (2) specify the type of sanction sought; (3) specify the amount sought if monetary sanctions are involved; and (4) cite the authority for such sanctions. [Code Civ. Proc. § 2023.040.] When monetary sanctions are sought, the notice must be accompanied by a declaration “setting forth facts supporting the amount” of the monetary sanction requested. [*Ibid.*]

B. Discussion.

Defendants’ motion is unopposed, and the Court has not been informed whether Plaintiffs provided complete, verified, and objection-free responses to the Form Interrogatories before the Court issued this tentative ruling. Susanna’s voluntary dismissal of her claims against Defendants does not moot the motion because they continue to pursue their cross-complaint against her. “A plaintiff may not unilaterally dismiss the entire action if a cross-complaint or complaint in intervention is pending.” [*Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 425 (emphasis omitted; citing Code Civ. Proc. § 581, subd. (i)).] The Form Interrogatories are relevant to the defendants’ cross-claims against Susanna. Therefore, Defendants’ motion to compel is **GRANTED**. Within 15 days of the notice of entry of the signed order, each plaintiff shall serve complete, verified, and objection-free responses to the defendants’ first set of Form Interrogatories.

Deemed Admitted Motion.

A. Legal Standard.

The initial penalty for a party's failure to respond promptly to a Request for Admissions ("RFA") is a waiver of any objection to the requests, including those based on privilege or work product protection. [Code Civ Proc. § 2033.280, subd. (a).] Failing to respond to an RFA does not automatically mean admissions. Instead, the propounding party must "move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction" under Code of Civil Procedure section 2033.010 et seq. [Code Civ. Proc. § 2033.280, subd. (b).] Specifically, a "court shall" grant a motion to deem request for admission contentions admitted, "unless [the court] finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." [Code Civ. Proc. § 2033.280, subd. (c).]

B. Discussion.

Plaintiffs never responded to Defendants' RFA, which was mail-served on April 7, 2026. [Defendants' Decl. at ¶ 2 and Exhs. A-1 to A-4.] The deadline for Plaintiffs to serve their RFA responses was May 12, 2026. [*Id.* at ¶ 4.] That deadline has passed, and Plaintiffs have not served any response to Defendants' RFA.

Accordingly, Defendants' motion is **GRANTED**. The genuineness of any documents and the truth of any matters specified in Defendants' RFA are deemed admitted. [*Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979 ("[A] deemed admitted order establishes, by judicial fiat, that a nonresponding party has responded to the requests by admitting the truth of all matters contained therein.")].

Sanctions Request.

Defendants' request for monetary sanctions is **DENIED**. They failed to meet the procedural requirements of Code of Civil Procedure section 2033.240, including failing to specify the amount of sanctions and to provide facts supporting the requested amount in their declaration. Additionally, self-represented litigants cannot recover fees as discovery sanctions. [*Argaman v. Ratan* (1999) 73 Cal.App.4th 1173, 1179; *Kravitz v. Superior Court* (2001) 91 Cal.App.4th 1015, 1021.] Lastly, Defendants did not identify any reasonable expenses incurred for filing this motion. [*Kravitz*, 91 Cal.App.4th at 1021.] Therefore, the request is **DENIED** because Defendants did not provide the necessary information for the Court to award monetary sanctions to them.

Conclusion.

Defendants' motion to compel is **GRANTED**. Plaintiffs have 15 days from the Notice of Entry of the signed order to serve complete, verified, and objection-free responses to Defendants' first set of Form Interrogatories.

Defendants' deemed-admitted motion is **GRANTED**. The genuineness of any documents and the truth of any matters specified in Defendants' RFA are deemed admitted.

Defendants' request for sanctions is **DENIED**.

The Court will prepare the Order.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED**. You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.